



CHAPTER ciii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Cranbrook District Water and Sevenoaks Water.

A.D. 1930.

[10th July 1930.]

WHEREAS under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 the Minister of Health has made certain provisional orders which need confirmation by Parliament :

33 & 34 Vict.
c. 70.
36 & 37 Vict.
c. 89.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders of the Minister of Health which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Cranbrook District Water and Sevenoaks Water) Act 1930.

Short title.

[Ch. ciii.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

A.D. 1930.

SCHEDULE.

CRANBROOK DISTRICT WATER.

Cranbrook Water Order. *Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Cranbrook District Water Company to increase their borrowing powers and for other purposes.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

Short and collective titles.

1. This order may be cited as the Cranbrook District Water Order 1930 and the Cranbrook District Water Act 1895 the Cranbrook District Water Act 1898 and the Cranbrook District Water Company (Modification of Charges) Order 1923 and this order may be cited together as the Cranbrook District Water Acts and Orders 1895 to 1930.

Commencement of Order.

2. This order shall come into operation upon the date of the Act of Parliament confirming it.

Incorporation of certain Acts.

3.—(1) In so far as the same are applicable to the purposes of this order the provisions of—

(a) The Companies Clauses Consolidation Act 1845 (except sections 56 and 65 of that Act); and

(b) Part III (relating to debenture stock) of the Companies Clauses Act 1863;

as amended by any enactment shall except where expressly varied by this order be incorporated with this order.

(2) In the construction of the enactments so incorporated with this order the expression “special Act” shall be read as a reference to this order and the expression “company” shall mean the Undertakers.

Interpretation.

4.—(1) In this order unless the context otherwise requires—

“the Act of 1895” means the Cranbrook District Water Act 1895;

“the Act of 1898” means the Cranbrook District Water Act 1898;

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. ciii.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

“the commencement of this order” means the date upon which this order comes into operation; A.D. 1930.

“the local Acts” means the Act of 1895 and the Act of 1898; *Cranbrook Water Order.*

“the Undertakers” means the Cranbrook District Water Company.

(2) The several words terms and expressions to which by the Acts incorporated with this order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this order the same respective meanings.

5. The Cranbrook District Water Company incorporated by the Act of 1895 shall be the Undertakers for the purposes of this order. Undertakers.

6.—(1) Notwithstanding anything in the local Acts and the Acts incorporated with this order the Undertakers may at any time after the commencement of this order and without obtaining the certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 borrow on mortgage in respect of the capital raised by them before the commencement of this order by the issue of shares or stock sums not exceeding in the aggregate twenty-five thousand pounds : Additional powers of borrowing in respect of existing and authorised capital.

Provided that the aggregate of any mortgages granted under the local Acts which may be outstanding at the commencement of this order shall for the purpose of the limit of borrowing be deemed to have been granted under the authority of this article.

(2) The Undertakers may in respect of any further capital raised by them after the commencement of this order by the issue of shares or stock under the powers of the local Acts borrow on mortgage any sums not exceeding in the whole one-half of the further capital (including premiums) so raised :

Provided that no sum shall be borrowed in respect of such further capital until the Undertakers have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the capital at the time issued together with the premium (if any) realised on the sale thereof has been fully paid up.

(3) Section 10 of the Act of 1895 and section 30 of the Act of 1898 which empower the Undertakers to borrow on mortgage are hereby repealed in so far as the powers conferred by those sections have not been exercised at the commencement of this order.

[Ch. ciii.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

A.D. 1930.

—
*Cranbrook
Water
Order.*

Power to
create
debenture
stock.

7.—(1) Subject to the provisions of Part III of the Companies
Clauses Act 1863 as amended by the Companies Clauses Act 1869
the Undertakers may create and issue debenture stock to the
extent authorised by those Acts.

(2) Section 13 of the Act of 1895 and so much of section 32
of the Act of 1898 as authorises the creation and issue of debenture
stock are hereby repealed.

(3) The references to any subsequent Act in that part of
section 32 of the Act of 1898 which is not repealed by this order
shall be read as including a reference to this order.

Redeemable
debenture
stock.

8.—(1) The Undertakers may create and issue all or any of
the debenture stock authorised to be created and issued by this
order so as to be redeemable on such terms and conditions as may
be specified in a resolution of the Undertakers passed at a special
meeting convened for the purpose.

(2) If it is so provided in the resolution the Undertakers
may subject to the provisions of this article—

(a) Call in and pay off the stock or any part thereof at any
time before the fixed date of redemption; and

(b) Redeem the stock or any part thereof either by paying
off the stock or by issuing to any stockholder subject
to his consent other debenture stock in substitution
therefor.

(3) For the purpose of providing money for paying off the
stock or of providing substituted debenture stock the Undertakers
may create and issue new debenture stock (either redeemable or
irredeemable) or re-issue debenture stock originally created and
issued under this article.

(4) The Undertakers shall not redeem from revenue any
debenture stock issued by them under this order and in the
exercise of the powers conferred by paragraph (2) of this article
the Undertakers shall not cause the total nominal amount of
debenture stock to exceed the amount of such stock which the
Undertakers are for the time being authorised to create but
this prohibition shall not apply during the necessary interval
between the creation and issue of the new debenture stock and
the redemption of the debenture stock to be redeemed.

Priority of
principal
moneys
secured by
existing
mortgages.

9. The principal moneys secured by all mortgages subsisting
at the commencement of this order which may have been granted
by the Undertakers under the local Acts shall during the
continuance of those mortgages have priority over the principal
moneys secured by any mortgages granted by the Undertakers
under the authority of this order but nothing in this order shall
prejudice the priority conferred by section 32 of the Act of 1898
in respect of the interest upon debenture stock and mortgages.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. ciii.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

A.D. 1930.

10. Section 15 of the Act of 1895 (which provides for the priority of all moneys raised by the Undertakers on mortgage or debenture stock under the provisions of that Act) shall extend to all moneys raised by the Undertakers on mortgage or by the creation and issue of debenture stock under the authority of this order and as respects moneys so raised there shall be substituted for the reference in that section to the passing of the Act of 1895 a reference to the commencement of this order.

*Cranbrook
Water
Order.*

Priority
of moneys
raised under
this order on
mortgage or
by debenture
stock.

11.—(1) The mortgagees under any mortgage granted under this order by the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver :

Appoint-
ment of
receiver.

Provided that on any application for the appointment of a receiver in respect of arrears of principal the appointment of a receiver shall not be authorised unless the aggregate amount owing to the mortgagees by whom the application is made shall not be less than one-tenth part of the total amount for the time being owing by the Undertakers on mortgages granted under this order.

(2) Section 12 of the Act of 1895 shall not extend to the mortgagees of the Undertakers in respect of mortgages granted under this order.

12. All moneys raised under this order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of debentures or debenture stock under the provisions of this order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of moneys.

13. The Undertakers shall not without the consent of the Minister of Health pay interest at a higher rate than six pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this order.

Limit of
interest on
moneys
borrowed.

14. All costs charges and expenses of and incidental to the application for this order and the preparation making and confirmation of this order shall be paid by the Undertakers and may in whole or in part be charged against revenue and if wholly charged against revenue may be spread over a period not exceeding five years.

Costs of
order.

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and Sevenoaks Water) Act, 1930.*

A.D. 1930.

SEVENOAKS WATER.

*Sevenoaks
Water Order.*

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 conferring further powers upon the Sevenoaks Waterworks Company.

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1. This order may be cited as the Sevenoaks Water Order 1930 and the Sevenoaks Waterworks Act 1878 the Sevenoaks Water Order 1892 the Sevenoaks Water Order 1900 the Sevenoaks Water Order 1904 the Sevenoaks Water Order 1908 and the Sevenoaks Water Works Company (Modification of Charges) Order 1922 and this order may be cited together as the Sevenoaks Water Act and Orders 1878 to 1930.

Commence-
ment of
Order.

2. This order shall come into operation upon the date of the Act of Parliament confirming it.

Incorpora-
tion of
certain
Acts.

3.—(1) In so far as the same are applicable to the purposes of this order and are not inconsistent with the provisions of the existing Act and orders or this order the provisions of—

- (a) The Companies Clauses Consolidation Act 1845 (except sections 56 and 65 of that Act);
- (b) Part III (relating to debenture stock) of the Companies Clauses Act 1863;
- (c) The Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking); and
- (d) The Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the Waterworks Clauses Act 1847 “with the consent in writing of the owner or “reputed owner of any such house or of the agent of “such owner” and except sections 76 to 79 of that Act relating to reserve funds);

as amended by any enactment shall except where expressly varied by this order be incorporated with this order.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. ciii.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

(2) In the construction of the enactments so incorporated with this order the expression "special Act" shall be read as a reference to this order and the expression "company" shall mean the Undertakers. A.D. 1930.
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*Sevenoaks
Water Order.*

4.—(1) In this order the several words terms and expressions to which by the Acts in whole or in part incorporated with this order or by the Gas and Water Works Facilities Act 1870 meanings are assigned shall unless the context otherwise requires have the same respective meanings. Interpreta-
tion.

(2) In this order unless the context otherwise requires—

"the commencement of this order" means the date upon which this order comes into operation;

"the Act of 1878" means the Sevenoaks Waterworks Act 1878;

"the order of 1892" "the order of 1900" "the order of 1904" and "the order of 1908" respectively mean the Sevenoaks Water Orders of those respective years;

"the charges order of 1922" means the Sevenoaks Waterworks Company (Modification of Charges) Order 1922;

"the existing Act and orders" means the Act of 1878 the order of 1892 the order of 1900 the order of 1904 the order of 1908 and the charges order of 1922;

"the directors" means the directors of the Undertakers;

"the limits of supply" means the limits within which the Undertakers are for the time being authorised to supply water;

"the Minister" means the Minister of Health;

"the Undertakers" means the Sevenoaks Waterworks Company;

"the undertaking" means the undertaking of the Undertakers as existing from time to time.

5. The Sevenoaks Waterworks Company shall be the Undertakers for the purposes of this order. Under-
takers.

PART II.

FINANCIAL PROVISIONS.

6. Notwithstanding anything in article 12 of the order of 1908 the Undertakers may from time to time reissue as preference shares or stock bearing a rate of dividend not exceeding six pounds per centum per annum any capital authorised by that order and issued as redeemable preference stock under the powers Increase of
dividend
on preference
shares or
stock
reissued.

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and Sevenoaks Water) Act, 1930.*

A.D. 1930. of that order and of the Sevenoaks Waterworks Company (Capital
Issues) Consent 1920.

*Sevenoaks
Water Order.*
Additional
powers of
borrowing
on mortgage.

7.—(1) Notwithstanding anything in the existing Act and orders or the Acts incorporated with this order the Undertakers may at any time after the commencement of this order and without obtaining the certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 or the existing Act and orders borrow on mortgage in respect of the capital raised by them before the commencement of this order by the issue of shares or stock sums not exceeding in the aggregate forty thousand pounds:

Provided that the aggregate of the sums borrowed by the Undertakers under the existing Act and orders or under the Sevenoaks Water (Capital Issues) Consent 1924 which may be outstanding at the commencement of this order shall for the purpose of the limit of borrowing be deemed to have been borrowed under the authority of this article.

(2) No higher rate of interest than six pounds per centum per annum shall be paid by the Undertakers without the consent of the Minister in respect of any moneys borrowed by the Undertakers after the commencement of this order and secured as aforesaid.

(3) Sections 28 and 29 of the Act of 1878 paragraph (2) of article 6 of the order of 1892 paragraph (2) of article 6 of the order of 1900 and paragraph (2) of article 7 of the order of 1908 which empower the Undertakers to borrow on mortgage are hereby repealed in so far as the powers conferred by those provisions have not been exercised at the commencement of this order.

Power to
create
debenture
stock.

8.—(1) Subject to the provisions of Part III of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 the Undertakers may create and issue debenture stock to the extent authorised by those Acts but in calculating the amount of debenture stock which may be created and issued under this article the amount outstanding at the commencement of this order of redeemable debenture stock issued by the Undertakers under the Sevenoaks Water (Capital Issues) Consent 1924 shall be deemed to have been issued under the provisions of this article.

(2) Section 32 of the Act of 1878 article 16 of the order of 1900 article 14 of the order of 1908 and so much of article 17 of the order of 1892 as authorises the creation and issue of debenture stock are hereby repealed.

Issue of
redeemable
debenture
stock.

9.—(1) If the Undertakers desire to issue any debenture stock they may issue such debenture stock as redeemable stock on such terms and conditions as may be specified in a resolution

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and Sevenoaks Water) Act, 1930.*

of the Undertakers passed at a special meeting convened for the purpose.

A.D. 1930.

(2) If it is so provided in the resolution the Undertakers may subject to the provisions of this article—

*Sevenoaks
Water Order.*

(a) call in and pay off the debenture stock or any part thereof at any time before the date fixed for redemption;

(b) redeem the stock or any part thereof either by paying off such stock or by issuing to any stock holder subject to his consent other debenture stock in substitution therefor.

(3) For the purpose of providing money for paying off the stock or providing substituted debenture stock the Undertakers may create and issue new debenture stock (redeemable or irredeemable) or reissue debenture stock originally created and issued as aforesaid so however that the creation and issue of debenture stock for that purpose shall not cause the total nominal amount of debenture stock to exceed the amount of such stock which the Undertakers are for the time being authorised to create and issue but this prohibition shall not apply during the necessary interval between the creation and issue of the new debenture stock and the redemption of the debenture stock to be redeemed.

(4) The Undertakers shall not redeem out of revenue any debenture stock created and issued by them under the powers of this article except to the extent of any discount allowed on the issue or any premium payable on the redemption of any such stock.

10. The principal moneys secured by all mortgages subsisting at the commencement of this order which may have been granted by the Undertakers under the existing Act and orders shall during the continuance of those mortgages have priority over the principal moneys secured by any mortgages granted by the Undertakers under the authority of this order but nothing in this order shall prejudice the priority conferred by article 17 of the order of 1892 in respect of the interest upon debenture stock and mortgages.

*Priority of
principal
moneys
secured by
existing
mortgages.*

11. All moneys (including premiums) raised under the foregoing provisions of this order shall be applied only to purposes of the existing Act and orders and this order to which capital is properly applicable.

*Application
of money.*

12.—(1) The directors may (if they think fit) in any year set apart out of the clear profits of the undertaking such sum as they may determine (subject to the provisions of the next succeeding article of this order) to form a reserve fund to answer any deficiency which may at any time happen in the

*Reserve
fund.*

[Ch. ciii.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

A.D. 1930. amount of divisible profits or to meet any extraordinary claim or demand which may at any time arise against the Undertakers.

—
*Sevenoaks
Water Order.*

(2) All sums so set apart shall be invested in securities in which trustees are authorised by law to invest and the dividends or interest arising from those securities may be accumulated and invested in the like class of security.

(3) If at any time the amount in the reserve fund shall be reduced it may be restored.

(4) Sections 76 to 79 of the Waterworks Clauses Act 1847 shall cease to be incorporated with the existing Act and orders upon a reserve fund being formed under the provisions of this article.

Limit on
reserve and
contingency
funds.

13.—(1) The aggregate amount which may be carried in any year to any reserve fund formed in pursuance of the immediately preceding article of this order and to any contingency fund formed under section 122 of the Companies Clauses Consolidation Act 1845 shall not together exceed a sum equal to one per centum of the capital for the time being expended by the Undertakers for the purposes of the undertaking.

(2) The aggregate amount standing to the credit of any such reserve fund and contingency fund of the Undertakers as afore-said shall not together at any time exceed a sum equal to ten per centum of the capital for the time being expended by the Undertakers for the purposes of the undertaking.

PART III.

MANAGEMENT OF UNDERTAKING.

Ordinary
meetings.

14. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 or in the existing Act and orders the ordinary general meeting of the Undertakers shall be held once only in each year in the month of February or in such other month as the directors may appoint and it shall not be obligatory on the Undertakers to hold half-yearly general meetings or half-yearly to balance their accounts or make up a balance sheet.

Interim
dividends.

15. The directors may in any year declare and pay an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Undertakers out of the profits of the Undertakers without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one half of the prescribed maximum rate of dividend payable on such shares or stock.

Closing of
transfer
books.

16.—(1) The directors may close the register of transfers of any ordinary or preference shares or stock of the Undertakers for a period not exceeding fourteen days previous to the payment

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of any interim dividend on any such ordinary or preference shares or stock and may close the register of transfers of debentures or debenture stock or mortgages of the Undertakers for a period not exceeding fourteen days previous to the payment of any interest on any such debentures or debenture stock or mortgages and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this article.

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—
*Sevenoaks
Water Order.*

(2) Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published and circulating within the limits of supply.

(3) Any transfer of any ordinary or preference shares or stock or of any debentures or debenture stock or mortgages lodged for registration with the Undertakers while the transfer books relating to such ordinary or preference shares or stock or to such debentures or debenture stock or mortgages are so closed shall as between the Undertakers and the person claiming under any such transfer but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

17.—(1) No person shall be eligible to be elected a director at any general meeting of the Undertakers unless he shall have been the holder of the qualifying amount of shares or stock for at least three months prior to his election.

Qualifica-
tion and
notice of
candidature
of director.

(2) No person not being a retiring director of the Undertakers shall be eligible to be elected a director of the Undertakers at any general meeting unless notice in writing is given to the secretary of the Undertakers or left at the principal office of the Undertakers fourteen days at least before the date of election that such person will be proposed for election as a director of the Undertakers and the secretary of the Undertakers shall during those fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office.

(3) In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner

18. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Undertakers.

Directors
may
determine
remunera-
tion of
secretary.

PART IV.

ADDITIONAL POWERS OF UNDERTAKERS.

19.—(1) The directors may with the sanction of a majority of the proprietors and shareholders of the Undertakers present in person or by proxy and entitled to vote and voting at a general

Profit
sharing.

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—
*Sevenoaks
Water Order.*

meeting of the Undertakers prepare put in force and from time to time modify alter or rescind a scheme or schemes enabling the employees or any class or classes of the employees as may be defined in such scheme or schemes to participate in the profits of the Undertakers or any part of those profits as part of the terms of remuneration for the services of any such employee :

Provided that no such modification alteration or rescission of any such scheme or schemes shall have any retrospective effect so as to deprive any employee without his consent of any benefit accrued due to him under such scheme prior to the date of such modification alteration or rescission.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee not being under the age of sixteen years and shall be in writing and may be made on the part of the Undertakers under the hands of any two directors or under the hand of the secretary of the Undertakers or of any person from time to time appointed in that behalf by resolution of the directors.

(3) Notwithstanding anything in the existing Act and orders the directors may issue to any employee such amount of ordinary or preference shares or stock as the trustees under any such scheme may specify (being in each case within the limit of the amount of ordinary or preference shares or stock which the Undertakers may for the time being be authorised to issue) without first offering such shares or stock for sale by public auction or tender :

Provided that any shares or stock issued under the provisions of this article shall be issued at the average price at which according to the Undertakers' books sales of shares or stock of the same class were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of shares or stock of the same class within the said period then at the price at which the last sale of shares or stock of the same class was effected making due allowance in each case for any enhancement in price by reason of any accrued dividend.

(4) The directors may also as part of any such scheme accept on deposit on behalf of any employee any savings or other sums of money belonging to such employee and pay interest thereon out of the revenues of the Undertakers at a rate to be agreed.

Power to
pay super-
annuation
and other
allowances.

20.—(1) The directors may grant such gratuities pensions or allowances or make such other payments as they may think fit to any employee of the Undertakers or where in any particular case no adequate provision is in their opinion otherwise made to the widow or family or any dependent of any such employee and they may establish and maintain a fund out of which such gratuities pensions allowances and payments may be granted or made.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. ciii.]
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and Sevenoaks Water) Act, 1930.*

(2) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependent such gratuities pensions allowances or payments as are by this article authorised.

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*Sevenoaks
Water Order.*

(3) The directors may subscribe or make donations to infirmaries hospitals and convalescent homes and other institutions and to the benevolent and sick funds of the employees of the undertaking.

(4) The directors may apply the revenues of the undertaking to any of the purposes of this article.

21. The Undertakers may by agreement purchase or take on lease houses cottages and other buildings for their employees offices and showrooms and may erect fit up and maintain and let any such buildings upon any lands for the time being belonging or leased to the Undertakers.

Dwelling-
houses for
employees
offices
showrooms
&c.

PART V.

SUPPLY OF WATER.

22.—(1) The Undertakers shall not be bound to supply with water otherwise than by meter—

Supply to
certain
premises.

(a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or

(b) any workhouse hospital asylum (whether public or private) sanatorium nursing home school club hotel public house inn public assembly hall or restaurant; or

(c) any boarding-house or common lodging-house capable of accommodating at least twelve persons; or

(d) any other institution which is habitually occupied by at least twenty persons.

(2) Where a supply of water to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by meter but nothing in this article shall authorise the Undertakers to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the net annual value thereof.

(3) The minimum quarterly charge for a supply of water by meter to any of the premises in this article mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value.

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Charges for
supply by
hose-pipe.

23. Where water supplied for domestic purposes otherwise than by meter is used for horses or washing carriages or motor cars or for other purposes on premises where horses carriages or motor cars are kept the Undertakers may if a hose-pipe or other similar apparatus is used charge any additional sum not exceeding twenty-five shillings per annum and (where more motor cars than one are ordinarily kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first and any sum chargeable under the provisions of this article shall be recoverable with and as the water rate.

Charges for
refrigerating
apparatus
&c.

24. Where a person who takes a supply of water from the Undertakers otherwise than by meter desires to use for or in connection with a refrigerating apparatus or for or in connection with any apparatus depending for proper use upon a constant supply of running water any of the water so supplied the Undertakers may if they think fit require that all water used for or in connection with the said apparatus shall—

(a) be taken by meter on the conditions and paid for at the rates for the time being in force for the supply of water by meter; or

(b) be paid for at such rates as may be agreed between such person and the Undertakers :

Provided that if the person is taking a supply of water from the Undertakers for domestic purposes only the minimum sum per quarter which may be demanded by the Undertakers for the water used for or in connection with any apparatus described in this article shall not exceed ten shillings.

Price of
supply by
meter.

25. The price to be charged by the Undertakers for a supply of water by meter shall not exceed two shillings and sixpence per thousand gallons.

Agreements
for supply
in bulk.

26.—(1) The Undertakers may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon :

Provided that such supply shall not be given except with the consent of any authority company or person supplying water under parliamentary authority within the area to be supplied and of the district council of the district comprising that area (which consent of the district council shall not be unreasonably withheld) nor if and so long as such supply would interfere with the supply of water for domestic or other purposes within the limits of supply.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. ciii.]
*Provisional Orders Confirmation (Cranbrook District Water
and Sevenoaks Water) Act, 1930.*

(2) Nothing in this article shall authorise the Undertakers to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

A.D. 1930.

—
*Sevenoaks
Water Order.*

PART VI.

SUPPLEMENTAL.

27. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any duly authorised officer of the Undertakers may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Undertakers in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable on summary conviction to a penalty not exceeding five pounds.

Extension
of power to
inspect
premises.

28. All the costs charges and expenses of and incidental to the application for this order and the preparation making and confirmation of this order shall be paid by the Undertakers and may in whole or in part be charged against revenue.

Costs of
order.

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FOR

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